

DISPUTES: WHY THEY'RE NORMAL AND HOW TO SETTLE THEM

The lack of family disputes can mean issues are simmering below the surface. These unspoken issues have a nasty habit of coming to the surface when there is a major family event, such as a death, a wealth transfer or the sale of the family business. It is best to have the most senior members of the family (of course, still of sound mind), the elders, settle disputes. It is the role of the elders to find the consensus-building solution to family conflicts.

But if, for whatever reason, there are no elders to resolve disputes, the Family Council must act as moderator. Family Council members must understand that deeply rooted biases often fuel sibling rivalries and that these biases can factor heavily into any conflict. The key here is to separate the people from the problem. There are relationships—and there is the problem. Moderators should emphasize the importance of maintaining healthy relationships and then deal with the problem based on its own merits.

It is natural for family members to take opposing positions based on different interests in the outcome. The challenge of the moderators is to find the common ground and build on it. They can do this by first clearly identifying the problem and the conflicting interests. Then they can brainstorm to identify the joint interests and options for resolution. They should set a tangible, mutually beneficial objective that can be reached by the most desirable option of resolution for both parties.

If a resolution is not forthcoming, it may become necessary to bring in a trusted outside mediator. It is crucial not to let family conflicts fester. Unresolved disputes break up families and destroy wealth.